

# SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

**NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.**

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                   |                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                              |                                                 |            |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------|--------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------|------------|
| 1. REQUISITION NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                   |                    | PAGE 1 OF                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                              |                                                 |            |
| 2. CONTRACT NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 3. AWARD/EFFECTIVE DATE           | 4. ORDER NUMBER    | 5. SOLICITATION NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | 6. SOLICITATION ISSUE DATE                                                                                                                                                                   |                                                 |            |
| 7. FOR SOLICITATION INFORMATION CALL:                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                   |                    | a. NAME                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                              | b. TELEPHONE NUMBER ( <i>No collect calls</i> ) |            |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                   |                    | 8. OFFER DUE DATE/ LOCAL TIME                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                              |                                                 |            |
| 9. ISSUED BY CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                   |                    | 10. THIS ACQUISITION IS <input type="checkbox"/> UNRESTRICTED OR <input type="checkbox"/> SET ASIDE: % FOR:<br><input type="checkbox"/> SMALL BUSINESS <input type="checkbox"/> WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS):<br><input type="checkbox"/> HUBZONE SMALL BUSINESS <input type="checkbox"/> ECONOMICALLY DISADVANTAGED <input type="checkbox"/> VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD:<br><input type="checkbox"/> SERVICE-DISABLED <input type="checkbox"/> 8(A)<br><input type="checkbox"/> SDVOSB |                                                                                                                                                                                              |                                                 |            |
| 11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED<br><input type="checkbox"/> SEE SCHEDULE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                   | 12. DISCOUNT TERMS |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | 13a. THIS CONTRACT IS A<br><input type="checkbox"/> RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)                                                      |                                                 |            |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                   |                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | 13b. RATING                                                                                                                                                                                  |                                                 |            |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                   |                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | 14. METHOD OF SOLICITATION REQUEST<br><input type="checkbox"/> REQUEST FOR QUOTE (RFQ) <input type="checkbox"/> INVITATION FOR BID (IFB) <input type="checkbox"/> REQUEST FOR PROPOSAL (RFP) |                                                 |            |
| 15. DELIVER TO CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                   |                    | 16. ADMINISTERED BY CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                                                                              |                                                 |            |
| 17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                   |                    | 18a. PAYMENT WILL BE MADE BY CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                              |                                                 |            |
| TELEPHONE NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                   |                    | 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED <input type="checkbox"/> SEE ADDENDUM                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                              |                                                 |            |
| <input type="checkbox"/> 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                   |                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                              |                                                 |            |
| 19. ITEM NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 20. SCHEDULE OF SUPPLIES/SERVICES |                    | 21. QUANTITY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | 22. UNIT                                                                                                                                                                                     | 23. UNIT PRICE                                  | 24. AMOUNT |
| (Use Reverse and/or Attach Additional Sheets as Necessary)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                   |                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                              |                                                 |            |
| 25. ACCOUNTING AND APPROPRIATION DATA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                   |                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | 26. TOTAL AWARD AMOUNT ( <i>For Government Use Only</i> )                                                                                                                                    |                                                 |            |
| <div style="display: flex; justify-content: space-between;"> <div style="width: 60%;"> <input type="checkbox"/> 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA<br/> <input type="checkbox"/> 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA<br/> <input type="checkbox"/> 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED </div> <div style="width: 35%;"> <input type="checkbox"/> 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: </div> </div> |                                   |                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                              |                                                 |            |
| 30a. SIGNATURE OF OFFEROR/CONTRACTOR                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                   |                    | 31a. UNITED STATES OF AMERICA ( <i>SIGNATURE OF CONTRACTING OFFICER</i> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                              |                                                 |            |
| 30b. NAME AND TITLE OF SIGNER ( <i>Type or print</i> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                   | 30c. DATE SIGNED   | 31b. NAME OF CONTRACTING OFFICER ( <i>Type or print</i> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                              | 31c. DATE SIGNED                                |            |

## Solicitation/Contract Form Continuation

Instrument Name: Brand Name or Equal Ingersoll Rand Items

Product Service Code : 4130

### Basis of Award

1. This Request for Quote (RFQ) W51AA1-26-Q-A059 is to provide Ingersoll Rand (or equal) Refrigerated Air Dryer (qty 2), Ingersoll Rand (or equal) Condensate Drain (qty 2) and Ingersoll Rand (or equal) 2" Ball Valve (qty 2) to Tobyhanna Army Depot, in accordance with the specifications.
2. This requirement is being solicited as unrestricted and will be conducted IAW Federal Acquisition Regulation (FAR) Parts 12 (Acquisition of Commercial Items). The NAICS Code for this requirement is 333415 (Air-Conditioning and Warm Air Heating Equipment and Commercial and Industrial Refrigeration Equipment Manufacturing). This award will be based on best value to the Government, considering delivery and price, to the offeror responsible otherwise conforming to all solicitation requirements. The Government reserves the right to award to other than the lowest price bidder or the earliest delivery bidder. See FAR 52.212-2, Evaluation-Commercial Items.
3. Questions and Answers: A question-and-answer conference will be held over MS Teams on May 11, 2026, 1:00 PM EST. Email [kaila.e.black.civ@army.mil](mailto:kaila.e.black.civ@army.mil) for link or call in number to the question-and-answer conference no later than May 11, 2026, 09:00 AM EST.  
  
Furthermore, if an offeror chooses not to attend the question-and-answer conference that will be held over MS Teams, they can submit questions in writing via email. All questions must be submitted in writing to the Contract Specialist, [kaila.e.black.civ@army.mil](mailto:kaila.e.black.civ@army.mil), via email only. Offerors are instructed NOT to contact any TYAD personnel, as this may result in delay of answers and possible incorrect information. Questions must be received no later than May 11, 2026. Answers will be consolidated and posted. Questions received after this time will not be answered.
4. All offer submissions shall be submitted to the contract specialist via email: [kaila.e.black.civ@army.mil](mailto:kaila.e.black.civ@army.mil) by the date and time specified in the solicitation. Submissions shall include an itemized quote, a signed copy of the SF 1449 solicitation (by a company representative authorized to bind the company) filled in with pricing for the CLIN, delivery date and all other items listed above. Must quote your best delivery date. Offers for used, after market or grey market items will not be accepted.

Submissions not received by the date and time specified in the solicitation or not providing all the required documentation, may not be considered for award. It is the responsibility of the Offeror to verify that their submission, to include all attachments, was received by the date and time specified in the solicitation. Offerors are advised to submit any questions regarding this solicitation in writing to the contract specialist via email: [kaila.e.black.civ@army.mil](mailto:kaila.e.black.civ@army.mil).

**\*\*Contractor shall use clause DFARS 252.225-7013 Duty Free Entry for any end products, components, or materials imported into the customs territory of the United States to assure that appropriate shipping documentation is used to prevent incurring duties. The contractor should reference either the solicitation number or contract number.**

**\*\*Effective 07 May 2025, DoD requires all installations to conduct a vetting process to determine fitness and eligibility for access. All visitors to the installation are subject to be vetted by Automated Installation Entry and/or NCIC-III, as well as a check of the Installation Bar List. The Contractor shall ensure its personnel have an acceptable form of identification to access Tobyhanna Army Depot. A Department of Defense Common Access Card, a state-issued Real ID, or a U.S.-issued passport are all acceptable forms of identification.**

6. The minimum acceptance period for offers is sixty (60) days from the date specified in block 8, on page 1 of the (SF)1449, including any extensions of the offer due date by solicitation amendment.

**7. BASIS OF AWARD:**

The Government will award a firm-fixed-price contract, resulting from this solicitation to the responsible offeror whose offer, conforming to the solicitation, will be the best value to the Government, considering delivery, price and meets all the responsibility criteria IAW with FAR 9.104. The Government reserves the right to award other than the lowest priced offer. Offerors are cautioned that an award may not necessarily be made to the lowest price offeror. See FAR 52.212-2, Evaluation-Commercial Items.

**8. PROPOSAL SUBMISSION REQUIREMENTS:**

- Signed 1449 as noted above
- All Signed Amendments noted above
- Quote showing ability to deliver items on or before June 5, 2026

**Specifications**

1. Scope - This specification defines the minimum requirements for purchasing multiple new refrigerated air dryer & installation parts required.

2. Requirements - The dryer units shall consist of the following features and capabilities as a minimum:

**Ingersoll Rand (brand name or equal) Refrigerated Air Dryer (qty 2):**

Model NVC1000 (1000 CFM) Cycling

Refrigerated Air Dryer, 460V / 3 PH / 60 HZ,

Heat Exchanger: Air Cooled Electric No Loss

Drain Valve

**Ingersoll Rand (brand name or equal) Condensate Drain (qty 2):**

PNLD-28

PNLD II - 28 Condensate Drain, (LP) Low

Pressure Control air (40-130 PSI)

**Ingersoll Rand (brand name or equal) 2" Ball Valve (qty 2):**

54634480

Ingersoll Rand Ball Valve With 2.00" Female

NPT

3. Documentation: The contractor shall provide a set of standard commercial manuals/instructions with the units. This documentation shall be provided at the same time as the delivery.

4. Warranty: One year warranty required.

\*\*\* END OF NARRATIVE \*\*\*

## Continuation of Supplies or Services and Prices/Costs

### Additional Information/Notes

| Item                                                                                                                                                                                                                                                                                                          | Supplies/Service                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Quantity | Unit | Unit Price | Amount |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
| 0001                                                                                                                                                                                                                                                                                                          | <p>Ingersoll Rand (or equal) Refrigerated Air Dryer (qty 2), Ingersoll Rand (or equal) Condensate Drain (qty 2) and Ingersoll Rand (or equal) 2" Ball Valve (qty 2)<br/> Manufacturer's CAGE: 37FN5<br/> Manufacturer's Part Number: NVC1000<br/> CLIN only - Requisition Document Number (MILSTRIP, DLMS, FEDSTRIP): W25G1V611200NE<br/> Product Service Code: 4130<br/> North American Industry Classification System (NAICS): 333415<br/> Bill to Party: W25G1V<br/> Pricing Arrangement: Firm Fixed Price</p> | 2        | Each |            |        |
| <p>Additional Descriptive Data:</p> <p>(1000 CFM) Cycling<br/> Refrigerated Air Dryer<br/> Stock Number: 85550234<br/> SOS: TheMillennium Group<br/> Model NVC1000 (1000 CFM) Cycling<br/> Refrigerated Air Dryer, 460V / 3 PH / 60 HZ,<br/> Heat Exchanger: Air Cooled Electric No Loss<br/> Drain Valve</p> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |          |      |            |        |

## **Continuation of Description**

### **Requirements**

Brand Name or Equal: Ingersoll Rand (or equal) Refrigerated Air Dryer (qty 2), Ingersoll Rand (or equal) Condensate Drain (qty 1) and Ingersoll Rand (or equal) 2 inch Ball Valve (qty 1)

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

|      |                                                                                                                                                                                                                                                                                                                                                                |
|------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0001 | <div>Inspection and Acceptance Location</div> <div>Both</div> <div>Destination</div> <div>Instructions: Deliver to Building 41</div> <div>DoDAAC: W25G1V</div> <div>CountryCode: USA</div> <div>W0ML USA DEP TOBYHANNA</div> <div>DIR OF PUBLIC WORKS ATTN APO, SQUIRE STREET BLDG 1C BAY 6</div> <div>TOBYHANNA, PA 18466-5079</div> <div>UNITED STATES</div> |
|------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

## Continuation of Deliveries or Performance

|      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0001 | <p><b>Delivery Schedule</b><br/>Delivery On Or Before<br/>Delivery Date 05 Jun 2026<br/><b>Quantity</b> 2 Each</p> <p><b>Address and POC</b><br/>Ship To<br/>DoDAAC: W25G1V<br/>CountryCode: USA<br/>W0ML USA DEP TOBYHANNA<br/>DIR OF PUBLIC WORKS ATTN APO, SQUIRE STREET BLDG 1C BAY 6<br/>TOBYHANNA, PA 18466-5079 UNITED STATES</p> <p><b>Special Handling/Notes</b><br/>FoB Details</p> <p>Party to Pay Transportation Cost: Contractor</p> <p>Point Type: Destination</p> |
|------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|



## Contract Clauses

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                                                                                                  | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.203-19 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.                                                                                    | 2017-01        |                     |                          |
| 52.204-13 | System for Award Management-Maintenance. (Deviation 2026-O0038)                                                                                                        | 2026-02        |                     |                          |
| 52.209-6  | Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038) | 2026-02        |                     |                          |
| 52.222-19 | Child Labor-Cooperation with Authorities and Remedies. (Deviation 2026-O0038)                                                                                          | 2026-03        |                     |                          |
| 52.222-35 | Equal Opportunity for Veterans. (Deviation 2026-O0038)                                                                                                                 | 2026-02        |                     |                          |
| 52.222-37 | Employment Reports on Veterans. (Deviation 2026-O0038)                                                                                                                 | 2026-02        |                     |                          |
| 52.222-50 | Combating Trafficking in Persons. (Deviation 2026-O0038)                                                                                                               | 2026-02        |                     |                          |
| 52.225-3  | Buy American-Free Trade Agreements-Israeli Trade Act.                                                                                                                  | 2026-02        |                     |                          |

(Deviation 2026-O0038)

|           |                                                                      |         |
|-----------|----------------------------------------------------------------------|---------|
| 52.226-8  | Encouraging Contractor Policies to Ban Text Messaging While Driving. | 2024-05 |
| 52.229-12 | Tax on Certain Foreign Procurements.                                 | 2021-02 |
| 52.232-33 | Payment by Electronic Funds Transfer-System for Award Management.    | 2018-10 |
| 52.232-40 | Providing Accelerated Payments to Small Business Subcontractors.     | 2023-03 |
| 52.233-3  | Protest after Award. (Deviation 2026-O0038)                          | 2026-02 |
| 52.233-4  | Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)  | 2026-02 |

#### DFARS Clauses Incorporated by Reference

| Number       | Title                                                          | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|----------------------------------------------------------------|----------------|---------------------|--------------------------|
| 252.203-7000 | Requirements Relating to Compensation of Former DoD Officials. | 2011-09        |                     |                          |
| 252.203-7002 | Requirement to Inform Employees of Whistleblower Rights.       | 2022-12        |                     |                          |

|              |                                                                                             |         |
|--------------|---------------------------------------------------------------------------------------------|---------|
| 252.204-7012 | Safeguarding Covered Defense Information and Cyber Incident Reporting.                      | 2024-05 |
| 252.204-7015 | Notice of Authorized Disclosure of Information for Litigation Support.                      | 2023-01 |
| 252.204-7018 | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services. | 2023-01 |
| 252.223-7008 | Prohibition of Hexavalent Chromium.                                                         | 2023-01 |
| 252.225-7001 | Buy American and Balance of Payments Program.                                               | 2024-02 |
| 252.225-7007 | Prohibition on Acquisition of Certain Items from Communist Chinese Military Companies.      | 2018-12 |
| 252.225-7056 | Prohibition Regarding Business Operations with the Maduro Regime.                           | 2023-01 |
| 252.225-7060 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.             | 2023-06 |
| 252.232-7003 | Electronic Submission of Payment Requests and Receiving Reports.                            | 2018-12 |
| 252.232-7010 | Levies on Contract Payments.                                                                | 2006-12 |
| 252.244-7000 | Subcontracts for Commercial Products or Commercial Services.                                | 2023-11 |

|              |                                    |         |
|--------------|------------------------------------|---------|
| 252.246-7008 | Sources of Electronic Parts.       | 2023-01 |
| 252.247-7023 | Transportation of Supplies by Sea. | 2024-10 |

#### **FAR Clauses Incorporated by Full Text**

| <b>Number</b> | <b>Title</b>                                                                             | <b>Effective Date</b> | <b>Alternate Deviation</b> | <b>Variation Effective Date</b> |
|---------------|------------------------------------------------------------------------------------------|-----------------------|----------------------------|---------------------------------|
| 52.212-4      | Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038) | 2026-02               |                            |                                 |

Terms and Conditions-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall-

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) Invoice. The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers,

employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment-

(1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act ( 31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) Interest.

(i) All amounts that become payable by the Contractor to the Government under this contract

shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final decision as required by FAR part 33 if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount

otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon-

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this



contract for default, such termination shall be deemed a termination for convenience.

(n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) Warranty. The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services;
- (2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
- (3) Other contract clauses incorporated in the solicitation or contract;
- (4) Addenda to this solicitation or contract;
- (5) Solicitation provisions incorporated in the solicitation;
- (6) Other paragraphs of this clause;
- (7) Other documents, exhibits, and attachments; and
- (8) The specification.

(s) Unauthorized obligations.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) Comptroller General examination of record. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals

under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

|           |                                                                                |         |
|-----------|--------------------------------------------------------------------------------|---------|
| 52.222-36 | Equal Opportunity for Workers<br>with Disabilities. (Deviation 2026-<br>O0038) | 2026-02 |
|-----------|--------------------------------------------------------------------------------|---------|

Equal Opportunity for Workers with Disabilities (Feb 2026) (Deviation 2026-O0038)

(a) Equal opportunity clause. The Contractor must abide by the requirements of the equal opportunity clause at 41 CFR 60-741.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified individuals on the basis of disability, and requires affirmative action by the Contractor to employ and advance in employment qualified individuals with disabilities.

(b) Subcontracts. The Contractor must include the terms of this clause in every subcontract or purchase order in excess of the threshold specified in Federal Acquisition Regulation (FAR) 22.1401-2(a)(1) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary, so that such provisions will be binding upon each subcontractor or vendor. The Contractor must act as specified by the Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

## DFARS Clauses Incorporated by Full Text

| Number       | Title                                     | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|-------------------------------------------|----------------|---------------------|--------------------------|
| 252.211-7003 | Item Unique Identification and Valuation. | 2023-01        |                     |                          |

### ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions.* As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

" Enterprise " means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

" Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at [http://www.aimglobal.org/?Reg\\_Authority15459](http://www.aimglobal.org/?Reg_Authority15459).

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

" Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number

Item Description

N/A

N/A

N/A

N/A

N/A

N/A

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number

Item Description

N/A

N/A

N/A

N/A

N/A

N/A

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparables and DoD serially managed nonreparables as specified in Attachment Number N/A.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number N/A.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier.*

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and



(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
- (2) Unique item identifier of the embedded subassembly, component, or part.
- (3) Unique item identifier type.\*\*
- (4) Issuing agency code (if concatenated unique item identifier is used).\*\*
- (5) Enterprise identifier (if concatenated unique item identifier is used).\*\*
- (6) Original part number (if there is serialization within the original part number).\*\*
- (7) Lot or batch number (if there is serialization within the lot or batch number).\*\*
- (8) Current part number (optional and only if not the same as the original part number).
- \*\* (9) Current part number effective date (optional and only if current part number is used).\*\*
- (10) Serial number (if concatenated unique item identifier is used).\*\*
- (11) Description.

\*\* Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

- (i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) N/A, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts*. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract (s), including subcontracts for commercial products or commercial services.

(End of clause)

252.232-7006      Wide Area WorkFlow Payment      2023-01  
Instructions.

#### WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions*. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing*. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access*. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

#### INVOICE AND RECEIVING REPORT (COMBINATION)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer. N/A

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) ) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table\*

| <i>Field Name in WAWF</i> | <i>Data to be entered in WAWF</i> |
|---------------------------|-----------------------------------|
| Pay Official DoDAAC       | <u>HQ0303</u>                     |
| Issue By DoDAAC           | <u>W51AA1</u>                     |
| Admin DoDAAC              | <u>W51AA1</u>                     |
| Inspect By DoDAAC         | <u>W25G1V</u>                     |
| Ship To Code              | <u>W25G1V</u>                     |
| Ship From Code            | _____                             |
| Mark For Code             | _____                             |
| Service Approver (DoDAAC) | _____                             |
| Service Acceptor (DoDAAC) | _____                             |
| Accept at Other DoDAAC    | _____                             |

|                     |       |
|---------------------|-------|
| LPO DoDAAC          | _____ |
| DCAA Auditor DoDAAC | _____ |
| Other DoDAAC(s)     | _____ |

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact: david.k.kern2.civ@army.mil

WAWF acceptor: john.j.mackinney.civ@army.mil

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

## Addendum to Contract Clauses

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                  | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|----------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.204-19 | Incorporation by Reference of Representations and Certifications.                      | 2014-12        |                     |                          |
| 52.209-10 | Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038) | 2026-02        |                     |                          |
| 52.222-3  | Convict Labor. (Deviation 2026-O0038)                                                  | 2026-02        |                     |                          |
| 52.223-23 | Sustainable Products. (Deviation 2026-O0038)                                           | 2026-02        |                     |                          |
| 52.225-14 | Inconsistency between English Version and Translation of Contract.                     | 2000-02        |                     |                          |
| 52.232-39 | Unenforceability of Unauthorized Obligations.                                          | 2013-06        |                     |                          |
| 52.240-91 | Security Prohibitions and Exclusions. (Deviation 2026-O0038)                           | 2026-02        |                     |                          |
| 52.242-15 | Stop-Work Order.                                                                       | 1989-08        |                     |                          |
| 52.244-6  | Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)   | 2026-04        |                     |                          |
| 52.247-34 | F.o.b. Destination.                                                                    | 1991-01        |                     |                          |

|          |                                                     |         |
|----------|-----------------------------------------------------|---------|
| 52.253-1 | Computer Generated Forms.<br>(Deviation 2026-O0038) | 2026-02 |
|----------|-----------------------------------------------------|---------|

#### DFARS Clauses Incorporated by Reference

| Number       | Title                                                   | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|---------------------------------------------------------|----------------|---------------------|--------------------------|
| 252.204-7003 | Control of Government Personnel Work Product.           | 1992-04        |                     |                          |
| 252.211-7008 | Use of Government-Assigned Serial Numbers.              | 2010-09        |                     |                          |
| 252.225-7002 | Qualifying Country Sources as Subcontractors.           | 2022-03        |                     |                          |
| 252.225-7016 | Restriction on Acquisition of Ball and Roller Bearings. | 2023-01        |                     |                          |
| 252.225-7041 | Correspondence in English.                              | 1997-06        |                     |                          |
| 252.225-7048 | Export-Controlled Items.                                | 2013-06        |                     |                          |
| 252.232-7008 | Assignment of Claims (Overseas).                        | 1997-06        |                     |                          |
| 252.243-7001 | Pricing of Contract Modifications.                      | 1991-12        |                     |                          |

#### FAR Clauses Incorporated by Full Text

| Number | Title | Effective Date | Alternate Deviation | Variation Effective Date |
|--------|-------|----------------|---------------------|--------------------------|
|--------|-------|----------------|---------------------|--------------------------|



|           |                                                                            |         |             |         |
|-----------|----------------------------------------------------------------------------|---------|-------------|---------|
| 52.240-91 | Security Prohibitions and Exclusions. (Deviation 2026-O0038) (Alternate I) | 2026-02 | Alternate I | 2026-02 |
|-----------|----------------------------------------------------------------------------|---------|-------------|---------|

*Alternate I* (Feb 2026) (Deviation 2026-O0038). As prescribed in 40.205(b), substitute the following paragraph (e)(1) for paragraph (e)(1) of the basic clause:

(e) *Governmentwide exclusion and removal orders.*

(1) Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by any applicable FASCSA orders identified by the checkbox(es) in this paragraph (e)(1).

Yes No DHS FASCSA Order

Yes No DoD FASCSA Order

Yes No DNI FASCSA Order

|          |                                    |         |
|----------|------------------------------------|---------|
| 52.252-2 | Clauses Incorporated by Reference. | 1998-02 |
|----------|------------------------------------|---------|

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/>

(End of clause)

|          |                                   |         |
|----------|-----------------------------------|---------|
| 52.252-6 | Authorized Deviations in Clauses. | 2020-11 |
|----------|-----------------------------------|---------|

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DEVIATION (48 CFR DEVIATION) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

## Solicitation Provisions

### FAR Provisions Incorporated by Reference

| Number   | Title                                                                                        | Effective Date | Alternate Deviation | Variation Effective Date |
|----------|----------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.204-7 | System for Award Management-Registration. (Deviation 2026-O0038)                             | 2026-02        |                     |                          |
| 52.212-1 | Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038) | 2026-02        |                     |                          |

### DFARS Provisions Incorporated by Reference

| Number       | Title                                                                                          | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 252.203-7005 | Representation Relating to Compensation of Former DoD Officials.                               | 2022-09        |                     |                          |
| 252.204-7024 | Notice on the Use of the Supplier Performance Risk System.                                     | 2023-03        |                     |                          |
| 252.225-7055 | Representation Regarding Business Operations with the Maduro Regime.                           | 2022-05        |                     |                          |
| 252.225-7059 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation. | 2023-06        |                     |                          |

## DFARS Provisions Incorporated by Full Text

| Number       | Title                                                                                                      | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|------------------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 252.204-7017 | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. | 2021-05        |                     |                          |

### PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense

telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [ ] will [ ] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)



## Evaluation - Commercial Products and Commercial Services

### FAR Provisions Incorporated by Full Text

| Number   | Title                                                                             | Effective Date | Alternate Deviation | Variation Effective Date |
|----------|-----------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.212-2 | Evaluation-Commercial Products and Commercial Services.<br>(Deviation 2026-O0038) | 2026-02        |                     |                          |

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The following factors will be used to evaluate offers: Delivery, price and conformance to the requirements proving that every single specification and detail can be met.

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

## Addendum to Solicitation Provisions

### FAR Provisions Incorporated by Reference

| Number    | Title                                                                                                                           | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|---------------------------------------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.203-18 | Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. | 2017-01        |                     |                          |
| 52.214-34 | Submission of Offers in the English Language.                                                                                   | 1991-04        |                     |                          |
| 52.214-35 | Submission of Offers in U.S. Currency.                                                                                          | 1991-04        |                     |                          |
| 52.240-90 | Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-00038)                                 | 2026-02        |                     |                          |

### FAR Provisions Incorporated by Full Text

| Number   | Title                                                                                    | Effective Date | Alternate Deviation | Variation Effective Date |
|----------|------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.225-4 | Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Deviation 2026-00038) | 2026-02        |                     |                          |



Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Feb 2026) (Deviation 2026-00038)

(a)

(1) The Offeror certifies that each end product, except those listed in paragraph (b) or (c)(1) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(2) of this provision contains a critical component.

(2) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(b) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

| Line item No. | Country of origin |
|---------------|-------------------|
| _____         | _____             |
| _____         | _____             |
| _____         | _____             |

[List as necessary]

(c)

(1) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (b) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Other Foreign End Products:

| Line Item No. | Country of origin |
|---------------|-------------------|
| _____         | _____             |
| _____         | _____             |
| _____         | _____             |

[List as necessary]

(2) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. \_\_\_\_\_

[List as necessary]

(d) The Government will evaluate offers in accordance with the policies and procedures of part 25 of the Federal Acquisition Regulation.

(End of provision)

|          |                                                                                        |         |                 |         |
|----------|----------------------------------------------------------------------------------------|---------|-----------------|---------|
| 52.225-4 | Buy American-Free Trade<br>Agreements-Israeli Trade Act<br>Certificate. (Alternate II) | 2026-02 | Alternate<br>II | 2025-01 |
|----------|----------------------------------------------------------------------------------------|---------|-----------------|---------|

*Alternate II* (Jan 2025). As prescribed in 25.601(b)(2)(ii), substitute the following paragraph (b) for paragraph (b) of the basic provision:

(b) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act".

Israeli End Products:

| Line Item No. |
|---------------|
| _____         |

|            |
|------------|
| <u>N/A</u> |
| _____      |
| _____      |

[List as necessary]